SAMPLE - EDUCATIONAL ONLY - NOT FOR SIGNING

OREA Ontario Real Estate Association

Agreement of Purchase and Sale

Form 100

for use in the Province of Ontario

This Agreement of Purchase and Sale dated this 16th day of November 20 26

BUYER: Sample Buyer (Full legal names of all Buyers), agrees to purchase from

SELLER: Sample Seller (Full legal names of all Sellers), the following

REAL PROPERTY:

Address 123 Banana Street Sampletown ON A1A 1A1

fronting on the south side of Banana Street

in the Town of Sampletown

and having a frontage of 50 Feet more or less by a depth of 150 Feet more or less

and legally described as
Lot 1, Plan 99M-1, Town of Sampletown
(Legal description of land including easements not described elsewhere) (the "property")

PURCHASE PRICE: Dollars (CDN$) 600,000.00

Six Hundred Thousand Dollars

DEPOSIT: Buyer submits Upon Acceptance (Herewith/Upon Acceptance/as otherwise described in this Agreement)

Twenty Thousand Dollars (CDN$) 20,000.00

by negotiable cheque payable to Listing Brokerage "Deposit Holder" to be held in trust pending completion or other termination of this Agreement and to be credited toward the Purchase Price on completion. For the purposes of this Agreement, "Upon Acceptance" shall mean that the Buyer is required to deliver the deposit to the Deposit Holder within 24 hours of the acceptance of this Agreement. The parties to this Agreement hereby acknowledge that, unless otherwise provided for in this Agreement, the Deposit Holder shall place the deposit in trust in the Deposit Holder's non-interest bearing Real Estate Trust Account and no interest shall be earned, received or paid on the deposit.

Buyer agrees to pay the balance as more particularly set out in Schedule A attached.

SCHEDULE(S) A **attached hereto form(s) part of this Agreement.**

1. **IRREVOCABILITY:** This offer shall be irrevocable by Buyer (Seller/Buyer) until 8:00 (a.m./p.m.) on the 17th day of November 20 26, after which time, if not accepted, this offer shall be null and void and the deposit shall be returned to the Buyer in full without interest.

2. **COMPLETION DATE:** This Agreement shall be completed by no later than 6:00 p.m. on the 15th day of January 20 27. Upon completion, vacant possession of the property shall be given to the Buyer unless otherwise provided for in this Agreement.

INITIALS OF BUYER(S): **INITIALS OF SELLER(S):**

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3. NOTICES: The Seller hereby appoints the Listing Brokerage as agent for the Seller for the purpose of giving and receiving notices pursuant to this Agreement. Where a Brokerage (Buyer's Brokerage) has entered into a representation agreement with the Buyer, the Buyer hereby appoints the Buyer's Brokerage as agent for the purpose of giving and receiving notices pursuant to this Agreement. **The Brokerage shall not be appointed or authorized to be agent for either the Buyer or the Seller for the purpose of giving and receiving notices where the Brokerage represents both the Seller and the Buyer (multiple representation) or where the Buyer or the Seller is a self-represented party.** Any notice relating hereto or provided for herein shall be in writing. In addition to any provision contained herein and in any Schedule hereto, this offer, any counter-offer, notice of acceptance thereof or any notice to be given or received pursuant to this Agreement or any Schedule hereto (any of them, "Document") shall be deemed given and received when delivered personally or hand delivered to the Address for Service provided in the Acknowledgement below, or where a facsimile number or email address is provided herein, when transmitted electronically to that facsimile number or email address, respectively, in which case, the signature(s) of the party (parties) shall be deemed to be original.

FAX No.: ..... (For delivery of Documents to Seller)

FAX No.: ..... (For delivery of Documents to Buyer)

Email Address: sample.seller.notice@example.com (For delivery of Documents to Seller)

Email Address: sample.buyer.notice@example.com (For delivery of Documents to Buyer)

4. CHATTELS INCLUDED:

Fridge, Stove, Dishwasher, Washer, Dryer, Lighting Fixtures, Garage Door Opener and Remotes.

Unless otherwise stated in this Agreement or any Schedule hereto, Seller agrees to convey all fixtures and chattels included in the Purchase Price free from all liens, encumbrances or claims affecting the said fixtures and chattels.

5. FIXTURES EXCLUDED:

Dining Room Chandelier

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6. RENTAL ITEMS (Including Lease, Lease to Own): The following equipment, as set out below or as otherwise described in this Agreement, is rented and **not** included in the Purchase Price. The Buyer agrees to assume the rental contract(s), if assumable:

Hot Water Heater

The Buyer agrees to co-operate and execute such documentation as may be required to facilitate such assumption.

7. HST: If the sale of the property (Real Property as described above) is subject to Harmonized Sales Tax (HST), then such tax shall be ..... included in ..... the Purchase Price. If the sale of the property is not subject to HST, Seller agrees to certify on or before (included in/in addition to) closing, that the sale of the property is not subject to HST. Any HST on chattels, if applicable, is not included in the Purchase Price.

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Form 105
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Schedule A
Agreement of Purchase and Sale

This Schedule is attached to and forms part of the Agreement of Purchase and Sale between:

BUYER: Sample Buyer, and

SELLER: Sample Seller

for the property known as 123 Banana Street Sampletown

ON A1A 1A1 dated the 16th day of November, 20 26

BALANCE OF PURCHASE PRICE

The Buyer agrees to pay the balance of the Purchase Price, subject to adjustments, to the Seller on completion of this transaction, with funds drawn on a lawyer's trust account in the form of a bank draft, certified cheque or wire transfer using the Lynx high value payment system as set out and prescribed by the Canadian Payments Act (R.S.C., 1985, c. C-21) as amended from time to time.

HOME INSPECTION AND INSURANCE

This offer is conditional on the Buyer arranging a home inspection and insurance for the property satisfactory to the Buyer in the Buyer's sole and absolute discretion. Unless the Buyer gives notice in writing delivered to the Seller personally or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any schedule thereto not later than 8 p.m. 10 (ten) business days (Excluding Saturdays, Sundays and Holidays) after acceptance of this offer that these conditions have been fulfilled, this offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction. The Seller agrees to co-operate in providing access to the property, if necessary, for any inspection of the property required for the fulfillment of this condition. This condition is included for the benefit of the Buyer and may be waived at the Buyer's sole option by notice in writing to the Seller as aforesaid within the time period stated herein.

FINANCING

This Offer is conditional upon the Buyer at the Buyer's own expense, arranging financing satisfactory to the Buyer in the Buyer's sole and absolute discretion. Unless the Buyer gives notice in writing delivered to the Seller personally or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any Schedule thereto not later than 6:00 p.m. on 7 Business days (excluding Saturdays, Sundays and Statutory holidays) following acceptance, that this condition is fulfilled, this Offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction. The Seller agrees to co-operate in providing access to the property for the purpose of satisfying this condition. This condition is included for the benefit of the Buyer and may be waived at the Buyer's sole option by notice in writing to the Seller as aforesaid within the time period stated herein.

SALE OF PURCHASERS PROPERTY

This Offer is conditional upon the sale of the Buyer's property known as 456 Orange Avenue, Sampletown, Ontario. Unless the Buyer gives notice in writing delivered to the Seller personally or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any Schedule thereto not later than 8:00 p.m. on the 8th day of January, 2027, that this condition is fulfilled, this Offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction. This condition is included for the benefit of the Buyer and may be waived at the Buyer's sole option by notice in writing to the Seller as aforesaid within the time period stated herein.

ESCAPE CLAUSE

Provided further that the Seller may continue to offer the property for sale and, in the event the Seller receives a acceptable Offer, the Seller may so notify the Buyer personally or their agent or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any Schedule thereto. The Buyer shall have 48 hours from the giving of such notice to waive any and all conditions by notice in writing delivered to the Seller personally or the seller's agent or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any Schedule thereto, failing which this Offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction.

This form must be initialled by all parties to the Agreement of Purchase and Sale.

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Schedule A
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BUYER: Sample Buyer, and

SELLER: Sample Seller

for the property known as 123 Banana Street Sampletown

ON A1A 1A1 dated the 16th day of November, 20 26

PAUSE OF ESCAPE CLAUSE

In the event the Buyer receives an Offer on the aforementioned property with a conditional period not to exceed TEN (10) banking days (excluding Saturdays, Sundays, and statutory holidays), the escape clause allowing the Sellers to accept another offer on their property shall be paused for the duration of the same TEN (10) banking days. The Seller can continue to market the home on MLS, but the Buyer cannot be serviced notice for remove the Sale of Purchaser Property condition or be bumped during this timeframe.

SELLER FINDING SUITABLE ACCOMMODATION

This Offer is conditional upon the Seller finding accommodation satisfactory to the Seller in the Seller's sole and absolute discretion. Unless the Seller gives notice in writing delivered to the Buyer personally or in accordance with any other provisions for the delivery of notice in this Agreement of Purchase and Sale or any Schedule thereto not later than 8:00 p.m. on the 15th day of December, 2026, that this condition is fulfilled, this Offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction. This condition is included for the benefit of Seller and may be waived at the Seller's sole option by notice in writing to the Buyer as aforesaid within the time period stated herein.

SEPTIC SYSTEM

The Seller represents and warrants, to the best of the Seller's knowledge and belief, that at the time of installation: (1) all sewage systems serving the property are wholly within the setback requirements of the said property, and had received all required Certificates of Installation and Approval pursuant to the Environmental Protection Act; (2) all sewage systems serving the property had been constructed in accordance with the said Certificates of Installation and Approval; (3) all sewage systems serving the property had received all required Use permits under the said Act or any other legislation; and further, all sewage systems serving the property have been maintained in good working order during the Seller's occupancy and will be in good working order on closing. Further, the Seller agrees to provide any and all documentation relating to the sewage system, within the Seller's possession, or which may be made available to the Seller by the appropriate authorities, and given to the Buyer prior to the last date set for examining title. The Parties agree that these representations and warranties shall survive and not merge on completion of this transaction, but apply only to the state of the property existing at the completion of this transaction. The Seller agrees, at their expense, to have the septic tank pumped and inspected by a professional and provide receipt of the work completed on or before the date set for title search. If the Seller has had the septic tank pumped out in the last 6 (six) months and documentation is available, this will serve as completed and the pumping of the septic tank is not necessary.

WATER SYSTEM

The Seller represents and warrants that, during their occupancy of the property, the well pump and all related equipment serving said property have performed adequately, and that the well is capable of supplying water sufficient for normal household use, and with no evidence of contamination. The Seller agrees to allow access to the property to allow the Buyer's agent to obtain water samples, as needed, with results showing an acceptable rating according to the local Health Authority. In the event that the water sample does not meet acceptable standards, the Seller agrees, at the Seller's expense, to rectify and ensure an acceptable rating can be delivered before closing day.

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Schedule A
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This Schedule is attached to and forms part of the Agreement of Purchase and Sale between:

BUYER: Sample Buyer, and

SELLER: Sample Seller

for the property known as 123 Banana Street Sampletown

ON A1A 1A1 dated the 16th day of November, 20 26

CHATTELS, FIXTURES & MECHANICAL WARRANTY

The Seller represents and warrants that all chattels, fixtures, mechanical, electrical, heating, plumbing, ventilation and all other equipment on the real property shall be in good working order on completion. The Parties agree that this warranty shall survive and not merge on completion of this transaction, but apply only to those circumstances existing at the completion of this transaction.

WATER DAMAGE WARRANTY

The Seller represents and warrants that on completion, there is no known damage to the basement, roof or elsewhere caused by water seepage or flooding. The parties agree that these representations and warranties shall survive and not merge on completion of this transaction, but apply only to the state of the property at completion of this transaction.

STIGMA

The Seller represents and warrants that, to the best of their knowledge, there has never been a murder, death or suicide in the home or stigmatized in any way that could affect the Buyers decision to purchase the home.

SOLICITOR REVIEW & STATUS CERTIFICATE

This Offer is conditional upon the Buyer's Solicitor reviewing the following Condominium Corporation's documentation: a Status Certificate, and attachments, and finding all of the foregoing satisfactory in the Buyer's Solicitor's sole and absolute discretion. Unless the Buyer gives notice in writing delivered to the Seller not later than three (3) banking days (excluding weekends and holidays) after receipt by the Buyer's Solicitor of the foregoing documentation, that this condition is fulfilled, this Offer shall be null and void and the deposit shall be returned to the Buyer in full without deduction. The Seller agrees to request, at the Seller's expense, the foregoing documentation within two (2) banking day (excluding weekends and holidays) after acceptance of this Agreement. This condition is included for the benefit of the Buyer and may be waived at the Buyer's sole option by notice in writing to the Seller within the time period stated herein. The Seller represents and warrants that, with respect to the unit, the Condominium Act, Declaration, Bylaws and Rules of the Condominium Corporation have been complied with, and that no improvements, additions, alterations or repairs that require the consent of the Condominium Corporation have been carried out in the said unit, the exclusive use areas or the common elements, unless the required consent has been obtained from the Condominium Corporation. This warranty shall survive and not merge on the completion of this transaction.

SURVEY

The Seller agrees to supply the Buyer with a copy of an existing survey of said property, if in the Seller's possession, within 3 days after acceptance of this agreement of purchase and sale.

ADDITIONAL VISITS

The Buyer shall have the right to view the property 2 (two) further times, not including home inspection and appraisal, prior to completion date at a mutually-agreed-upon time. The Seller agrees to provide full access to the property for these viewings.

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